

HOUSE No. 2117

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting wages of deceased employees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 2117

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 2117) of Kenneth I. Gordon relative to wages of deceased employees. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting wages of deceased employees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 178A of Chapter 149 of the General Laws, as appearing in the 2022
2 official edition, is hereby amended by striking the entire section and inserting in place thereof the
3 following section:-

4 Section 178A.

5 (a) In the event of the death of an employee all wages due to the deceased employee at
6 the time of death, may, upon proper demand on the employer, be paid, in the absence of actual
7 notice of the pendency of probate proceedings, without requiring letters testamentary or of
8 administration in the following order of preference to decedent's:

9 (i) surviving spouse;

10 (ii) children 18 years of age and over in equal shares, or to the guardian of children under
11 18 years of age;

(iii) father and mother;

(iv) sibling; or

(v) another person not otherwise identified above who pays the funeral expenses.

(b) Payments under subsection (a) of this section shall constitute a full discharge of all obligations of the employer with respect to such wages and shall hold the employer harmless from any liability in any legal action brought after the payment of these wages.

(c) Any employer receiving a proper demand for wages under the statute shall retain the demand and any supporting documentation, as well as proof of payment, as part of the employee's personnel record as provided in chapter 149, section 52C.

(d) Definitions

"Proper demand" shall consist of a written request in the form of an affidavit sworn to under penalty of perjury by the individual or individuals identified in subsection (a) above, indicating that the individual or individuals are entitled to the wages under subsection (a), and with the following supporting documentation:

(i) written notice of the employee's death such as an obituary or death notice;

(ii) written evidence of the relationship between the deceased employee and the individual requesting the payment of final wages; and

(iii) in the event that the demand is from a person who is not next of kin as described in subsection (a), evidence that the claimant paid for the decedent employee's funeral.

"Wages" shall have the same meaning as defined in chapter 149, section 148.